

Vernon's Texas Statutes and Codes Annotated

Occupations Code (Refs & Annos)

Title 12. Practices and Trades Related to Water, Health, and Safety (Refs & Annos)

Subtitle B. Practices Related to Health and Safety

Chapter 1958. Mold Assessors and Remediators (Refs & Annos)

Subchapter D. Practice by License Holder

V.T.C.A., Occupations Code § 1958.154

§ 1958.154. Certificate of Mold Remediation; Duty of Property Owner

Currentness

(a) Not later than the 10th day after the date on which a license holder completes mold remediation at a property, the license holder shall provide a certificate of mold remediation to the property owner. The certificate must include a statement by a mold assessment license holder that, based on visual, procedural, and analytical evaluation, the mold contamination identified for the project has been remediated as outlined in the mold management plan or remediation protocol. If the mold assessment license holder determines that the underlying cause of the mold has been remediated so that it is reasonably certain that the mold will not return from that remediated cause, the mold assessment license holder shall indicate on the certificate that the underlying cause of the mold has been remediated.

(b) If a property owner sells property, the property owner shall provide to the buyer a copy of each certificate issued for the property under this section during the five years preceding the date the property owner sells the property.

(c) The commission shall adopt rules to implement this section, other than rules described by Subsection (d).

(d) The commissioner of insurance shall adopt rules describing the information that must be provided in the certificate of mold remediation. In adopting the rules, the commissioner shall design the certificate as necessary to comply with any requirements imposed under Subchapter G, Chapter 544, Insurance Code.¹

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2005, 79th Leg., ch. 149, § 2, eff. May 24, 2005; Acts 2005, 79th Leg., ch. 728, § 11.153, eff. Sept. 1, 2005; Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.306, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.289, eff. Sept. 1, 2017.

Footnotes

1 V.T.C.A., Insurance Code § 544.301 et seq.

V. T. C. A., Occupations Code § 1958.154, TX OCC § 1958.154

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.